TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1696]

[07340]

IDAHO

MODIFYING EXECUTIVE ORDER NO. 4226 OF MAY 16, 1925

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 4226 of May 16, 1925, which withdrew the following-described public lands in Idaho for classification, is hereby modified to the extent necessary to permit disposal of the lands under applicable public-land laws by a State exchange or State selection:

BOISE MERIDIAN

T. 3 S., R. 18 E.,
Sec. 17, NE¼.

The area described contains 160.57 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 28, 1958.

F. R. Doc. 58-5916; Filed, Aug. 1, 1958; 8:46 a. m.]

[Public Land Order 1697]

[Fairbanks 013619]

ALASKA

WITHDRAWING PUBLIC LANDS FOR USE OF DEPARTMENT OF AIR FORCE FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Alaska are hereby withdrawn from all forms of appropriation under the public land laws, including the mining and mineral-leasing laws but not the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U. S. C. 601-604) as amended, and reserved for use of the Department of the Air Force for military purposes:

FAIRBANKS MERIDIAN

T. 2 N., R. 1 E.
Sec. 2, N½NE¼SW¼NW¼, and
All that part of lot 4 as described by the following aliquot parts: SW¼NW¼NW¼, S½NE¼NW¼NW¼, and E½SW¼NW¼NW¼.

The areas described contain approximately 25 acres.

The Department of the Interior retains jurisdiction over the management of the surface and subsurface resources, including mineral resources of the lands. No disposal of such resources will be made except under applicable public land laws with the concurrence of the Department of the Air Force and, where necessary, only after appropriate modification of the provisions of this order.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 28, 1958.

[F. R. Doc. 58-5963; Filed, Aug. 1, 1958; 8:55 a. m.]

[Public Land Order 1698]

[Fairbanks 010043]

ALASKA

PARTIALLY REVOKING PUBLIC LAND ORDER NO. 1173 OF JUNE 24, 1955, WHICH WITHDREW CERTAIN LANDS FOR USE IN MAINTENANCE OF AIR NAVIGATION FACILITIES AS ADDITION TO AIR NAVIGATION SITE WITHDRAWAL NO. 146

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Public Land Order No. 1173 of June 24, 1955, so far as it withdrew the following-described lands under the jurisdiction of the Civil Aeronautics Administration, Department of Commerce, for use in the maintenance of air navigation facilities as an addition to Air Navigation Site Withdrawal No. 146, is hereby revoked:

Beginning at a point on line 11-12 of United States Survey 2639 from which corner No. 12 bears N. 42°54' W., 8,000 feet, thence
S. 47°04' W., 3,700 feet;
S. 42°56' E., 3,350 feet to line of mean high water of the west bank of Napaskiak Slough;
Northeasterly, 3,800 feet along line of mean high tide to a point on line 11-12, U. S. S. 2639;
N. 42°54' W., 2,875 feet along line 11-12 to point of beginning.

The tract described contains approximately 265 acres.

2. Subject to any existing valid rights and the requirements of applicable law, the lands are hereby opened to settlement and to filing of such applications, selections, and locations as are allowable on unsurveyed lands in accordance with the following:

a. Subject to the applications and claims described in paragraph b (1) below, the lands, beginning at 10:00 a. m. on September 2, 1958, will be subject to settlement under the Homestead and Alaska Home Site Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284 as amended). Beginning at 10:00 a. m. on December 2, 1958, any remaining lands will be subject to settlement under these laws by other qualified persons.

b. Applications and selections under the nonmineral public-land laws and applications and offers under the mineral-leasing laws may be presented to the Manager mentioned below, beginning on the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having preference rights conferred by existing laws or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279-284 as amended), presented prior to 10:00 a. m. on September 2, 1958, will be considered as simultaneously filed at that hour. Rights under such perference-right applications after that hour will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public-land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral-leasing laws, presented prior to 10:00 a. m. on December 2, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

c. The lands will be open to applications and offers under the mineral-leasing laws, and to location under the United States mining laws beginning at 10:00 a. m. on December 2, 1958.

3. Persons claiming veteran's preference rights under paragraph b (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon statutory preference or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

4. The Territory of Alaska has waived the preference right of selection granted it by section 202 (b) of the Alaska Mental Health Enabling Act of July 28, 1956 (70 Stat. 711; 48 U. S. C. 46.3 (b)).

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

ROGER ERNST,
Assistant Secretary of the Interior.

JULY 28, 1958.

[F. R. Doc. 58-5917; Filed, Aug. 1, 1958; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

PART 11—INDUSTRIAL RADIO SERVICES

ORDER GRANTING EXCEPTION TO RULE

In the matter of requests for exception to § 11.8 (a) of the Commission's rules.

1. By First Report and Order of June 18, 1958, in Docket No. 11991 (FCC 58-602, released June 23, 1958) the Commission amended (effective August 1, 1958) § 11.8 (a) of its Industrial Radio Services Rules in several particulars. As amended, § 11.8 (a) specifies definite and detailed procedures for effecting coordination in the selection of frequencies and also specifies an alternative procedure whereby an applicant may submit an advisory recommendation from a frequency advisory committee so organized as to be representative of all persons eligible in the area purported to be served by such committee. Although § 11.8 (a) has heretofore required applicants and licensees in the Industrial Radio Services to cooperate in the selection and use of frequencies, and although frequency advisory committees of the type contemplated by the amendment have been in existence in many of the Commission's services for a number of years, the above procedures are relatively new to users in the Special Industrial Radio Service.

2. The Commission has received a request from the Special Industrial Radio Service Frequency Advisory System Organizing Committee, among others, seeking exception, for two months, to so much of the amended § 11.8 (a) as requires applications for frequencies in the Special Industrial Radio Service to be accompanied by evidence of frequency coordination in one of the forms set forth in the said section.[1] These requests are based upon the newness—as above described—of the procedures established, and upon the correlative consideration that the additional time is necessary in order for interested persons to acclimate themselves to such procedures. There appears to be considerable warrant for the relief requested, particularly, in light of the heterogeneous nature of the various activities provided for in the Special Industrial service.

3. In view of the foregoing, and pursuant to § 0.291 (b) (7) of the Commission's Rules, *It is ordered*, Effective August 1, 1958, that the above-described requests for exception are granted, and that, until October 1, 1958, applicants in the Special Industrial Radio Service (and applicants in the Business Radio Service for frequencies adjacent to frequencies available to the Special Industrial Radio Service) are excepted from so much of § 11.8 (a) as requires the submission of evidence of frequency coordination in one of the forms set forth therein.

Adopted: July 29, 1958.

Released: July 30, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] GORDON J. KENT,
Acting Secretary.

[F. R. Doc. 58-5940; Filed, Aug. 1, 1958; 8:52 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF THE TREASURY

Internal Revenue Service

[26 CFR (1954) Part 270]

CIGARS AND CIGARETTES; MANUFACTURERS, IMPORTERS, AND DEALERS

NOTICE OF PROPOSED RULEMAKING

Notice is hereby given, pursuant to the Administrative Procedure Act, approved June 11, 1946, that the regulations set forth in tentative form below are proposed to be prescribed by the Commissioner of Internal Revenue, with the approval of the Secretary of the Treasury or his delegate. Prior to final adoption of such regulations, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing, in duplicate, to the Director, Alcohol and Tobacco Tax Division, Internal Revenue Service, Washington 25, D. C., within the period of 30 days from the date of publication of this notice in the FEDERAL REGISTER. The proposed regulations are to be issued under the authority contained in section 7805 of the Internal Revenue Code of 1954 (68A Stat. 917; 26 U. S. C. 7805).

[SEAL] RUSSELL C. HARRINGTON,
Commissioner of Internal Revenue.

In order to require the payment to the collector of customs, on the basis of a return, of any internal revenue tax due and payable on cigars imported in passengers' baggage, in excess of the quantity exempted from tax by law and customs regulations, or by mail where the value does not exceed $250, and such cigars are for the personal consumption of the importer or for disposition as his bona fide gift, regulations 26 CFR Part 270 are amended as follows:

PARAGRAPH 1. Section 270.64 is amended by adding in the third sentence after the words "That a manufacturer or an importer of cigars" the words "except where such cigars are imported in passengers' baggage, or by mail where the value does not exceed $250, for the personal consumption of the importer or for disposition as his bona fide gift,".

PAR. 2. Paragraph (a) of § 270.190 is amended to read as follows:

(a) *General.* All cigars and cigarettes shall, before removal, be put up by the importer in packages which shall bear the stamps, class designation, and mark, as required by this subpart. Such packages shall be of such construction as will securely contain the cigars and cigarettes therein and maintain such stamps, class designation, and mark thereon: *Provided*, That cigars imported in passengers' baggage, or by mail where the value does not exceed $250, where such cigars are for the personal consumption of the importer or for disposition as his bona fide gift, shall be exempt from the provisions of this paragraph.

PAR. 3. The first sentence of § 270.191 is amended to read as follows: "Every package of large cigars subject to tax shall, before removal, have legibly imprinted thereon, or on a label securely affixed thereto, a class designation, for tax purposes, corresponding with the rate of tax imposed by section 5701 (b) (2), I. R. C., on the cigars contained therein: *Provided*, That cigars imported in passengers' baggage, or by mail where the value does not exceed $250, where such cigars are for the personal consumption of the importer or for disposition as his bona fide gift, shall be exempt from the provisions of this section."

PAR. 4. Section 270.191a is amended to read as follows:

§ 270.191a *Mark.* Every package of cigars on which tax is paid by return shall, before removal, have legibly imprinted thereon, or on a label securely affixed thereto, the number of cigars contained in such package: *Provided*, That cigars imported in passengers' baggage, or by mail where the value does not exceed $250, where such cigars are for the personal consumption of the importer or for disposition as his bona fide gift, shall be exempt from the provisions of this section.

PAR. 5. Section 270.230 is amended as follows:

(A) Paragraph (a) is amended to read as follows:

(a) *General.* Where cigars on which tax has not been paid are imported into the United States, the importer may, except as provided in paragraphs (c) and (d) of this section, pay tax thereon by filing a tax return, Form 2135, with remittance, with the district director for each removal of such cigars from customs custody subject to tax. The importer shall secure from the district director a copy of the tax return bearing acknowledgment of receipt of the remittance. Such copy shall be presented by the importer to the appropriate cus-

[1] Requests have been filed by or on behalf of American Iron Ore Association, American Mining Congress, Associated General Contractors, National Canners Association, National Industrial Sand Association, National Ready Mixed Concrete Association, National Sand and Gravel Association, Petroleum Equipment Suppliers Association, and Special Industrial Radio Service Association.